

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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JEREMIAH ARROYO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER DEAN CAMPBELL, Shield # 24820, POLICE OFFICER JAMES MILES, Shield # 2655, and SERGEANT JOSEPH BARONE, and POLICE OFFICERS JOHN DOES # 1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.
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SUMMONS

Index No.:

**The Basis of Venue is:
Location of Incident**

**Plaintiff designates Kings
County as the place of trial.**

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

**DATED: New York, New York
September 17, 2014**

Yours, etc.


**JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690**

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer Dean Campbell, Shield No. 24820, Brooklyn Gang Unit
Police Officer James Miles, Shield No. 2655, Brooklyn Gang Unit
Sergeant Joseph Barone, Brooklyn Gang Unit

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JEREMIAH ARROYO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER DEAN
CAMPBELL, Shield # 24820, POLICE OFFICER JAMES
MILES, Shield # 2655, and SERGEANT JOSEPH
BARONE, and POLICE OFFICERS JOHN DOES # 1-10
(names and number of whom are unknown at present), and
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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, JEREMIAH ARROYO, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 19, 2013, at approximately 11:00 a.m., plaintiff, JEREMIAH ARROYO, while lawfully driving in the vicinity of 364 Monroe Street, Brooklyn, New York, was subject to an unlawful, stop, search, false arrest, and false imprisonment by the defendant New York City police officers. Thereafter, the defendant police officers negligently handcuffed and negligently failed to secure plaintiff properly inside of the police van, which caused plaintiff to suffer serious physical injuries when the police van was in a motor vehicle accident. As a result of the negligence of the defendant police officers, the plaintiff was thrown out of his seat while handcuffed inside of the police van causing plaintiff to suffer serious physical injuries. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, searched, falsely arrested, and falsely imprisoned plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff JEREMIAH ARROYO is a resident of the State of New York.
3. Police Officer Dean Campbell, Shield No. 24820, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Police Officer Dean Campbell, Shield No. 24820, is and was at all times relevant herein, an officer, assigned to Brooklyn Gang Unit.
5. Police Officer Dean Campbell, Shield No. 24820, is being sued in his individual and official capacities.
6. Police Officer James Miles, Shield No. 2655, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Police Officer James Miles, Shield No. 2655, is and was at all times relevant herein, an officer, assigned to the Brooklyn Gang Unit.
8. Police Officer James Miles, Shield No. 2655, is being sued in his individual and official capacities.
9. Sergeant Joseph Barone, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. Sergeant Joseph Barone is and was at all times relevant herein, an officer, assigned to the 73rd precinct.
11. Sergeant Joseph Barone is being sued in his individual and official capacities.
12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
13. Police Officers John Does #1-10 are being sued in their individual and official capacities.
14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On June 19, 2013, at approximately 11:00 a.m., plaintiff was unlawfully pulled over by the defendants while driving his motor vehicle in the vicinity of 364 Monroe Avenue, Brooklyn, New York.

22. After unlawfully pulling over plaintiff, plaintiff was unlawfully asked to exit his motor vehicle.

23. Plaintiff complied with all of the defendant police officers' orders.

24. The defendant police officers unlawfully searched plaintiff's motor vehicle, without reasonable suspicion, probable cause or any legal justification.

25. At no time did the defendant police officers recover any illegal drugs, weapons or contraband of any kind from plaintiff's person or from plaintiff's motor vehicle.

26. At no time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he commit a crime.

27. Nevertheless, the defendant police officers handcuffed plaintiff and arrested plaintiff without legal justification or probable cause.

28. The defendant police officers then put plaintiff into a seat in the back of a police van.

29. However, the defendant police officers negligently failed to secure plaintiff in the back seat of the police van.

30. Specifically, the defendant police officers were negligent in that they did not secure plaintiff's person with a seatbelt inside of the van.

31. After plaintiff was put inside the police van, the defendant police officers began to drive the van to a local police precinct.

32. On June 19, 2013, defendant Police Officer Dean Campbell, was operating a motor vehicle bearing New York license plate GEZ4589.

33. On June 19, 2013, defendant Police Officer Dean Campbell, controlled a motor vehicle bearing New York license plate number GEZ4589.

34. On June 19, 2013, defendant Police Officer Dean Campbell, had permission to operate a motor vehicle bearing New York license plate number GEZ4589.

35. While the defendant police officers' motor vehicle was stopped at a red light at the corner of Madison Street and Marcus Garvey Boulevard, Brooklyn, New York, a motor vehicle struck the defendant police officers' van from behind.

36. As a result of the defendant police officers' van being struck by a motor vehicle, plaintiff was thrown out of his seat and landed face first on the floor of the van causing him to suffer injuries to his face, arms, wrists, shoulders, back, and neck.

37. Plaintiff sustained these physical injuries as a result of the defendant police officers negligently securing the plaintiff in the back seat of the police van.

38. Thereafter, another police van arrived at Madison Street and Marcus Garvey Boulevard, Brooklyn, New York, and transported plaintiff to the 79th precinct.

39. Upon arrival at the 79th precinct, plaintiff was placed in a holding cell.

40. Thereafter, EMS arrived at the precinct to treat plaintiff for the injuries he suffered because of the defendant police officers negligence in securing plaintiff in the police van.

41. While at the 79th precinct, the defendant police officers falsely stated to the Kings County District Attorney's Office that plaintiff had committed a crime.

42. As a result of the false information provided to the Kings County District Attorney's Office by the defendant police officers, a prosecution against plaintiff was initiated.

43. After several hours at the 79th precinct, plaintiff was transported to Kings County Central Booking.

44. On June 20, 2013, after approximately 24 hours in custody, plaintiff was arraigned in Brooklyn Central Booking and was released on his own recognizance.

45. Thereafter, plaintiff received further medical treatment for his physical injuries at Brookdale Hospital.

46. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers negligently secure individuals that are handcuffed and put inside of police vehicles.

47. As a result of defendant City of New York and the New York City Police Department's policy of negligently securing individuals that are handcuffed inside of police vehicles, the New York City Police Department's deliberate indifference about the fact that police officers are negligently securing individuals that are handcuffed inside of police vehicles.

48. The incident was extremely psychologically damaging to plaintiff. Furthermore, as a result of the incident, plaintiff sustained serious physical injuries.

49. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest and malicious prosecution of plaintiff.

50. The unlawful stop, search, false imprisonment and false arrest, and negligence by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, and falsely imprisoned and maliciously prosecuted without probable cause in

violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

61. Defendants lacked probable cause to search plaintiff.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FIFTH CAUSE OF ACTION

Failure to Intervene

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

69. Defendants failed to intervene to prevent the unlawful conduct described herein.

70. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior

SIXTH CAUSE OF ACTION

Negligence

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants owed a duty of care to plaintiff.

75. Defendants breached that duty of care by failing to properly secure plaintiff inside of the police van, causing him to suffer serious physical injuries.

76. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

77. All of the foregoing occurred without any fault or provocation by plaintiff.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Jeremiah Arroyo. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

81. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

83. Plaintiffs repeat and reallege paragraphs 1 through 82 as if fully set forth herein.

84. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

85. Defendants commenced and continued a criminal proceeding against plaintiff.

86. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

87. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

88. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

89. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

93. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, negligently securing individuals that are handcuffed inside of police vehicles, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

94. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

95. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

96. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

97. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was physically injured.

JURY DEMAND

98. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff JEREMIAH ARROYO demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 17, 2014

By: _____

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
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New York, NY 10007
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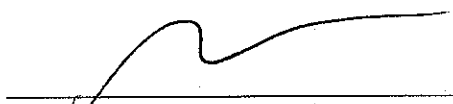
TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer Dean Campbell, Shield No. 24820, Brooklyn Gang Unit
Police Officer James Miles, Shield No. 2655, Brooklyn Gang Unit
Sergeant Joseph Barone, Brooklyn Gang Unit

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED AMENDED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 17, 2014



STUART E. JACOBS